

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GREGORY A. AUSTIN,

Petitioner

VS.

TAMMY MILLER-AUSTIN,

Respondent

) Case Number: FDI-14-780775

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: DEFAULT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Gregory Austin (Husband) and Respondent Tammy Miller-Austin (Wife) married on 10/7/1995 and separated on 10/8/2013, for a marriage of 18 years. The parties have an adult child, Martin (DOB: 3/26/1998, age 28). Both parties are self-represented.
- 2) On 2/5/2014, a Domestic Violence Restraining Order After Hearing was granted against Husband for the protection of Wife and the parties' child. That restraining order was originally set to expire on 9/30/2016, but it has been renewed twice, on 8/24/2016 and again on 11/17/2021. The restraining order is currently set to expire on 11/17/2026.
- 3) On 10/30/2017, a Judgment was entered following a trial before the Honorable Judge Wiley. Both parties appeared at trial. The Judgment provides in relevant part:
 - a. The marital residence located at 2506 23rd Avenue San Francisco, CA 94711 was awarded to Wife and Wife was ordered to pay Husband an equalizing payment of \$179,038.23

- 1 b. The parties shall retain Moon Schwartz & Madden to prepare QDROs to divide the
2 community interest in Wife's VALIC retirement account (which had a date of separation
3 cash value of \$9,428.55) and Husband's retirement accounts with St. Mary's,
4 Presbyterian Medical Center, and Dignity Health
- 5 c. Husband's request for permanent spousal support is denied
- 6 4) No pleadings were filed in this matter between the date the restraining order was renewed on
7 11/17/2021 and the date Husband filed the instant Request for Order.
- 8 5) Now on for hearing is Husband's Request for Order filed 5/11/2026. Husband states Wife
9 breached her fiduciary duties to him by failing to divide retirement accounts by QDRO, failing to
10 disclose "probate of acquired property 2636 W Pratt Blvd. Chicago, IL," distributing funds to
11 their adult son for undergraduate and / or graduate degrees and for housing, and illegally utilizing
12 the basement of the former marital residence to earn rental income. Husband also argues that the
13 prior restraining order violates his freedom of speech, right to bear arms, and right to free
14 association and free assembly and that Wife and their son are "accomplices" to the illegal
15 appropriation of his "legal and registered firearms." Husband states he has suffered \$3,117,000 in
16 damages. Husband asks the Court to:
- 17 a. Reverse the restraining order and instead issue "a similar restraining order against spouse
18 and son as restrained parties with CLETS"
- 19 b. Reimburse him for child support
- 20 c. Give Husband temporary exclusive use, possession, and control of 2506 23rd Avenue
21 San Francisco, CA 94711
- 22 d. "forensic financial reporting fees, return of firearms, court fees, remand to U.S. District to
23 investigate firearms / inheritance fraud"
- 24 e. Award Husband \$3,117,000 for damages
- 25 f. Admonish Court's officers
- 26 g. Transfer all family real estate titles to Husband's name
- 27 h. Order jail time for Wife and the parties' son
- 28 6) On 6/22/2026, Wife filed a Responsive Declaration asking that the Court dismiss Husband's
29 Request for Order for "failure to state a claim." Wife states she paid Husband the \$179,039.23 net

1 equalizing payment on or about 11/21/2017 and Husband signed an Interspousal Transfer Deed
2 granting Wife the property located at 2506 23rd Avenue San Francisco, CA 94711 as her sole and
3 separate property. Wife also states that in October 2017, her former attorney attempted to finalize
4 the division of the parties' retirement accounts using Moon Schwartz and Madden, but MSM
5 could not complete the QDROs because Husband failed to provide the information for all of his
6 retirement plans. Wife states Husband's motion is a continuation of the physical and emotional
7 abuse that caused her to obtain a restraining order. Wife asks the Court to dismiss Husband's
8 Request for Order in full with prejudice.

9 7) Per the Proof of Service filed 6/22/2026, Wife's Responsive Declaration was mailed to the
10 address the Court has on file for Husband on 6/20/2026.

11 8) Husband did not file a Reply Declaration.

12 **B. Findings and Order**

13 1) The Court finds that Husband has not met his burden of establishing good cause for the requested
14 relief. Husband's Request for Order is denied.

15 2) The Court will prepare the Findings and Order After Hearing.
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